

23NWCV01916 23NWCV01916

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C08%2F14%2F2026

Source SHA-256: 32aa0c5c3e2df3ec8fa6cd533014485aba4053bd406b1ee7a66143a982dc7659

Case Number: 23NWCV01916 Hearing Date: August 14, 2026 Dept: P

MONROY-ROMAN, ET AL. v. GENERO, ET AL.

CASE NO.: 23NWCV01916

HEARING: 08/14/2026 @ 9:30 AM

#7

TENTATIVE ORDER

Plaintiffs Noemi Monroy-Roman and Yeizon Rodriguez's

motion to compel Defendant Auto Company XXIII dba Autonation Chrysler Dodge

Jeep Ram Valencia to produce its person most qualified is taken OFF-CALENDAR as MOOT.

Moving party to give notice.

Plaintiffs Noemi Monroy-Roman and Yeizon Rodriguez (Plaintiffs)

move to compel Defendant Auto Company XXIII dba Autonation Chrysler Dodge Jeep Ram Valencia (Defendant) to produce a person most qualified (PMQ) for deposition.

Background

Plaintiffs filed this action against Defendants Rosita

Genero and Diego Genero on June 22, 2023 and Does 1 to 50. The complaint

alleges that on or about October 21, 2022, Plaintiffs were travelling

Northbound on I-710 approaching Frontage Road and Miller Way when Defendant

Rosita Genero, driving behind Plaintiffs, struck Plaintiffs' vehicle from behind, resulting in injuries. (Complaint, ¶¶ 8-9.) The complaint asserts two causes of action against all defendants: (1) negligence and (2) negligence per se.

On December 6, 2024, Plaintiffs requested dismissal without prejudice as to Defendant Diego Genero. On the same date, Defendant Diego Genero was dismissed without prejudice.

On May 5, 2025, Plaintiffs filed two Amendments to Complaint replacing Doe 1 with Autonation.com, Inc and Doe 2 with Autonation, Inc.

Discussion

Plaintiffs move pursuant to Code of Civil Procedure section 2025.480 to compel Defendant to produce its PMQ for deposition.

This is a continuation. On February 3, 2026, this motion first came on for hearing. The Court continued the hearing on this motion based on an insufficient meet and confer process and resulting uncertainty as to which issues were remaining. (Order, 2/3/2026.) The Court recognized that the parties themselves recognized the need to further meet and confer on this issue:

Counsel for Defendant states that the deposition of Defendant's PMQ proceeded as to the categories for which the PMQ was produced, and then, rather than ask the PMQ about other categories, Plaintiffs' counsel "cancelled the deposition and the Parties agreed to meet and confer on the categories of examination and the issues surrounding the deposition." (Crosby Decl., ¶¶ 7-9.)

(Order, 2/3/2026.) Acknowledging the need to meet and confer, the Court continued the hearing to today's date and stated:

The parties are ORDERED to meet and confer. The Joint Separate Statement must be filed on or before February 18, 2026. The Joint Separate Statement shall the Court on the remaining issues. Any supplemental opposition is due by February 24, 2026 and any supplemental reply is due by March 2, 2026. If there is no Joint Separate Statement filed by February 18, 2026, the Court will presume the issues in these

motions are moot.

(Order, 2/3/2026.)

There was no separate statement filed by February 18, 2026. Also, there were no supplemental oppositions filed by February 24, 2026 nor supplemental replies filed as of March 2, 2026. Pursuant to the Court's February 3, 2026 Order, the Court presumes the issues raised in this motion are moot.

Accordingly, Plaintiffs' motion to compel Defendant to produce its person most qualified is taken OFF-CALENDAR as moot.